

Shulman Property Natural Resource Description:

The following is a brief natural resource description of the 3 parcels owned by Peter Shulman in East Boxford.

8.4 acre parcel:

Although tax records indicate this parcel is owned by Peter Shulman, the field portion of this lot is owned by A. Noyes. Exactly what the specific acreage is that each owns is unclear but it seems at least 6+ acres does belong to Shulman. Until such time the exact property boundaries are determined it will be impossible to completely describe this parcel's natural resources. However, even without a survey it is clear that the majority, if not the whole parcel, is secondary red maple swamp with poor access. This parcel is land locked, acreage is very low and lack of surrounding conservation land establishes this parcel very low on the priority list. In fact, this parcel offers very little if any open space value for BTA/BOLT and should be excepted as a gift only if acquisition of surrounding lands is intended or desirable.

18 acre parcel:

Property boundaries for this parcel are unclear as well, although better defined than the previous discussed parcel. Stone walls do mark most of the boundaries but not all. For example: the section that the trail runs through is not marked at all and even Mr. Shulman is not confident of the exact boundary location in this area. The land to the north of the woods road is primarily secondary red maple swamp. This area is seasonally flooded during wet months and is part of the same wetland that occurs on the previous parcel. The majority of the land to the south of the woods road is upland although 2 small (acres?) wetlands do exist. These wetlands are primarily forested swamps with shrub understories that flood seasonally during wet months and with heavy precipitation. The upland is dominated by secondary Red Oaks and White Pine. Much of the oak was cut approximately 30 years ago. White Pine dominates the understory and can form thick continuous cover. Hemlock also occurs in the understory in small stands and American Chestnut is common. Ledge and large boulders are common on the ground surface with Rock Polypody, (a fern) growing on many of them.

50 - 70 acre parcel:

Although this parcel is 70+ acres, only 50 acres are being offered by Mr. Shulman to BTA/BOLT. These 50 acres lie primarily between Cedar Pond and the Olde Farms Rd. cul-de-sac to the north and Kimball ponds to the south. This parcel is completely wooded and includes approximately 400' - 500' of frontage on Cedar Pond. A brook, (dry on 10/9/95 site visit) flows from Cedar Pond to Kimball Pond (east). This Brook forms the eastern property boundary along its length except for the 100' access along Sheffield Rd.. Extensive red maple swamps are associated with this brook and Cedar Pond and extend

west to the Olde Farms cul-de-sac. The property continues along the back side of Kimball Pond (east) for approximately 400' - 500'. Kimball's Pond (east) is a very shallow pond with water depth ranging less than 4 or 5' throughout. The area behind the dam was dredged in the past and may be as deep as 12'. This area is less than 200 sq. ft. respectively. Pond lilies cover most of the water surface. Wetland shrubs and emergents form a contiguous ring around the shoreline. This pond is excellent for wildlife. Undoubtedly this pond provides habitat for many Amphibians and Reptiles as well as birds such as herons, ducks, kingfishers, etc.. Wood Ducks, a Great-Blue Heron, turtles, and dragonflies were observed during the previous site walk. Shallow Ponds of this type can be very productive biologically and provide habitat for an abundance of wildlife and plants. The western half of the property is divided by another intermittent (seasonal) stream which flows into Kimball Pond (west). This pond, although not within Shulman property is very close and in places only feet away. This pond is similar to Kimball Pond (east) but supports more emergent vegetation (rushes, sedges, and bur-reed). Preservation of this parcel may preserve the eastern shore line of this pond by preventing development on this side. Again extensive red maple swamps are associated with this stream and cover much of the land to the west of the stream. The uplands in this area are dominated by mixed deciduous hardwoods and include hickories, oaks, birch, and basswood. The basswoods are the largest I've seen in Boxford. I suspect they were spared the axe because the wetlands prevented good access to these uplands. The center of the property is primarily rocky upland. Ledge outcroppings are common. The forest is mixed hardwood and pine with some hemlock. Oaks are dominant with some hickory and maple. Black Gum is uncommon. Ericaceous shrubs (blueberries) are abundant, indicators to the lands acidity. Large dead hemlocks, both standing and fallen, are common and are testimony to the Gypsy Moth infestations of the early eighties. In these same areas sapling stands of hemlock now occur. Small areas of poll sized hardwoods (saplings) do occur where recent cutting has taken place. These areas are good grouse habitat. As a whole the diversity of wetlands and upland forest types provides excellent wildlife habitat. The property includes 20+ acres of wetlands and lies within 800' of the Wildcat Conservation Area. Opportunity does exist for expansion which would connect this parcel with Wildcat.

42539A
LET SENT
SEPT 1 1995

CONFIRMATION
Peter J. Shulman
193 Main Street
Boxford, Massachusetts
01921

Home: 508/887-2800
Fax: 508/887-6639

Office: 617/252-8890

September 27, 1995

BOLT/BTA
c/o Mrs. Judith Gore
186 Main Street
Boxford, MA 01921

Dear Mrs. Gore:

At your request I'm attempting to summarize my position on the various matters we've discussed over the last few months:

- 6815 P 168 10274 P 226
1. Referring to the Boxford Assessors Maps, I'm interested in donating parcel 28-1-9 and the portion of 28-1-34 which I own. On the latter parcel, I believe the Assessors records to be incorrect and that I own the northern end while Alerson Noyes owns the field at the southern end.

The gift will be with conservation restrictions and must be to an organization recognized as charitable by the IRS. I expect the donee to provide me with defensible appraisals, and I am hopeful that these would be come to \$250,000, although I would settle for somewhat less.

2. I have expressed an interest in the possible sale to BOLT of approximately 50 acres north of Kimballs Pond as shown on Land Court Plan 42539. I need to emphasize that timing is very important to me, and that I really need a funding commitment in the very near future with a closing early in 1996. However, I like the idea of the Town buying the property as an addition to Wildcat with 50% state reimbursement.

As I am required under Chap. 61a (The Tree Farm Program) to offer the land to the Town, I am going to go ahead and do this. I believe that we can discuss it further in that context. I am hopeful of being able to submit that offer by November 1st.

Very truly yours,

P.J. Shulman

attachments (2 pages)

DONALD J. SCUTIERE

ATTORNEY AT LAW

81 WASHINGTON STREET

SALEM, MASSACHUSETTS 01970

TEL. (978) 745-2161

FAX (978) 745-8972

COPY

July 22, 1998

Ms. Sherry Baers, Administrator
Boxford Planning Board
200 Washington Street
Boxford, MA 01921

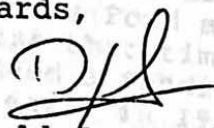
Re: Peter J. Shulman

Dear Sherry:

As you probably know, I acted as Escrow Agent for the Town and Peter Shulman in regard to a porkchop lot of his. Enclosed is a copy of the escrow instructions to me.

The sale has been completed and I am enclosing the original Trail Easement and Restrictive Covenants which are customarily filed with the Town Clerk's office. The original Deed to BTA/BOLT (copy enclosed) has been mailed to them.

Regards,


Donald J. Scutiere

DJS/jas
encs. (3)
cc: BTA/BOLT

Very truly yours,


Peter J. Shulman
193 Main Street
Boxford, Massachusetts
01921

Home: 508/887-2800
Fax: 508/887-6639

Office: 617/252-8890

Declaration of Restrictive Covenants

September 27, 1995

BOLT/BTA
c/o Mrs. Judith Gore
186 Main Street
Boxford, MA 01921

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1. Referring to the Boxford Assessors Maps, I'm interested in donating parcel 28-1-9 and the portion of 28-1-34 which I own. On the latter parcel, I believe the Assessors records to be incorrect and that I own the northern end while Alerson Noyes owns the field at the southern end.

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2. I have expressed an interest in the possible sale to BOLT of approximately 50 acres north of Kimballs Pond as shown on Land Court Plan 42539. I need to emphasize that timing is very important to me, and that I really need a funding commitment in the very near future with a closing early in 1996. However, I like the idea of the Town buying the property as an addition to Wildcat with 50% state reimbursement.

As I am required under Chap. 61a (The Tree Farm Program) to offer the land to the Town, I am going to go ahead and do this. I believe that we can discuss it further in that context. I am hopeful of being able to submit that offer by November 1st.

Very truly yours,

Peter J. Shulman

attachments (2 pages)

Judy

BTA/BOLT
BOXFORD TRAILS ASSOCIATION /
BOXFORD OPEN LAND TRUST, Inc.

P.O. Box 95, Boxford MA 01921

December 10, 1995

Mr. Peter Shulman
193 Main Street
Boxford, MA 01921

Dear Peter,

As you know, one of BTA/BOLT's goals is to work with landowners to help them make decisions on protection of open space. We are very interested in helping you protect your property in ways that will benefit you and the community. You have asked us to assist you with two of your parcels that are located in the vicinity of Main Street and Village Estates. We will work with you to see if we can develop a plan that is mutually advantageous.

One of your suggestions involves donating the two parcels to BTA/BOLT, provided that we conduct the appraisal, that the appraisal be satisfactory to you and the land will not be developed. While we agree to keeping the land undeveloped, the Board is concerned that the appraisal may not be satisfactory to you. Therefore, at the December 4, 1995 meeting, the BTA/BOLT Board of Directors voted to request that you handle the appraisal and that BTA/BOLT will reimburse you up to \$1000 for the cost of the appraisal once the land has been donated.

Before you consider this, you should seek advice regarding the tax consequences of this transaction. I recently spoke with Ed Becker, Director of Essex County Greenbelt Association. He advised me that as a donor of land you need to determine how the IRS may view the BTA/BOLT payment of the appraisal. If BTA/BOLT does pay for the appraisal, it may compromise the tax benefits of your gift, since it may then qualify as a bargain sale which has different tax credits under IRS regulations. It is our understanding that expenses you accrue as a result of conveying a gift of land to a qualified land trust are deductible.

The best advice then is to not jeopardize the benefits of your intended gift of land and avoid any implications of a bargain sale if you determine that a gift is more beneficial for your goals.

The BTA/BOLT Board looks to continue working with you on this project. Will you share with us your plan for the 50 acres and the four ANR lots that you are having appraised?

Sincerely,

Nancy N. Merrill, President, BTA/BOLT

cc: BTA/BOLT Board of Directors, Ed Becker, ECGB Director

Memo

To: Peter Shulman, 193 Main Street, Boxford, MA 01921

From: Nancy N. Merrill, President, BTA / BOLT Inc., 20 Cross Road,
Boxford, MA 01921, 508-887-2194 *Nancy N. Merrill*

Date: December 5, 1995

Subject: Open Space Preservation

At the meeting on December 4, 1995 of the Board of Directors of BTA / BOLT Inc., the Board voted to request that you hire and pay for the appraisal work on the two parcels that lie west of the Village Estates sub-division and that BTA/BOLT would reimburse you for the appraisal at the time the gift was made by you to BTA/BOLT.

This afternoon, I sought advice from Ed Becker, Director of Essex County Greenbelt. He advised me that as the donor, you need to be careful of the IRS interpretation of BTA/BOLT's payment of the appraisal. If BTA / BOLT pays the appraisal costs, it may compromise the value of your gift to BTA / BOLT and turn it into a bargain sale, which has different tax credits under IRS rules.

Any expenses that you accrue as the result of conveying a gift of land to a land trust are totally deductible as expenses.

The best advice seems to be: **to not jeopardize the full benefits of a gift of land, avoid any implication of a bargain sale.** If you or your attorney wish to discuss this with Ed Becker, his number is 508-768-7241.

The Board of BTA / BOLT looks to continue working with you on this project and waits your reply. Will you share with us your plan for the 50 acres and the four ANR lots that you are having appraised? The Board remains interested in preserving the land to Wildcat.

cc: Judy Gore, Russell Hopping, Richard Tomczyk, Ed Becker

CC: Shulman2.dot

My commission expires:

ELIZABETH A. RICH

Notary Public, Massachusetts

My Commission Expires February 14, 2001

508-768-7241

12-23

west to the Olde Farms cul-de-sac. The property continues along the back side of Kimball Pond (east) for approximately 400' - 500'. Kimball's Pond (east) is a very shallow pond with water depth ranging less than 4 or 5' throughout. The area behind the dam was dredged in the past and may be as deep as 12'. This area is less than 200 sq. ft. respectively. Pond lilies cover most of the water surface. Wetland shrubs and emergents form a contiguous ring around the shoreline. This pond is excellent for wildlife. Undoubtedly this pond provides habitat for many Amphibians and Reptiles as well as birds such as herons, ducks, kingfishers, etc.. Wood Ducks, a Great-Blue Heron, turtles, and dragonflies were observed during the previous site walk. Shallow Ponds of this type can be very productive biologically and provide habitat for an abundance of wildlife and plants. The western half of the property is divided by another intermittent (seasonal) stream which flows into Kimball Pond (west). This pond, although not within Shulman property is very close and in places only feet away. This pond is similar to Kimball Pond (east) but supports more emergent vegetation (rushes, sedges, and bur-reed). Preservation of this parcel may preserve the eastern shore line of this pond by preventing development on this side. Again extensive red maple swamps are associated with this stream and cover much of the land to the west of the stream. The uplands in this area are dominated by mixed deciduous hardwoods and include hickories, oaks, birch, and basswood. The basswoods are the largest I've seen in Boxford. I suspect they were spared the axe because the wetlands prevented good access to these uplands. The center of the property is primarily rocky upland. Ledge outcroppings are common. The forest is mixed hardwood and pine with some hemlock. Oaks are dominant with some hickory and maple. Black Gum is uncommon. Ericaceous shrubs (blueberries) are abundant, indicators to the lands acidity. Large dead hemlocks, both standing and fallen, are common and are testimony to the Gypsy Moth infestations of the early eighties. In these same areas sapling stands of hemlock now occur. Small areas of poll sized hardwoods (saplings) do occur where recent cutting has taken place. These areas are good grouse habitat. As a whole the diversity of wetlands and upland forest types provides excellent wildlife habitat. The property includes 20+ acres of wetlands and lies within 800' of the Wildcat Conservation Area. Opportunity does exist for expansion which would connect this parcel with Wildcat.